

**Superior Court of the State of California  
County of Orange**

**TENTATIVE RULINGS FOR DEPARTMENT C32  
JUDGE LEE L. GABRIEL, Dept. C32**

**Date: July 14, 2026**

**APPEARANCES:** Department C32 conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference. All counsel and self-represented parties appearing for such hearings must check-in online through the Court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Check-in instructions and instructional video are available at <https://www.occourts.org/mediarelations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" ("Appearance Procedures") and "Guidelines for Remote Appearances" ("Guidelines") are also available at <https://www.occourts.org/mediarelations/aci.html>.

Parties preferring to appear in-person for law and motion hearings may do so pursuant to Code of Civil Procedure § 367.75 and OCLR 375.

All hearings are open to the public.

If you desire a transcript of the proceedings, you must provide your own court reporter (unless you have a fee waiver and request a court reporter in advance). Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- Civil Court Reporter Pooling; and
- Court Reporter Interpreter Services

These are the Court's tentative rulings. They may become an order if the parties do not appear at the hearing. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

If the parties agree to submit on the Court's tentative rulings, please call the Court Clerk to inform the court that all parties submit on the Court's tentative ruling **(657-622-5232)**. The tentative ruling will then become the order of the Court upon a party or parties informing the Court that all parties submit to the Court's tentative ruling.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

| #  | Case Name                                                                                       | Tentative                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
|----|-------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 1. | <b>TORKZADEH VS. ACCRDIA<br/>LIFE AND ANNUITY<br/>COMPANY<br/>2025-01522348</b>                 | <p><b>MOTION TO APPEAR PRO HAC VICE</b></p> <p>The application of attorney Matthew D. Kelly to appear pro hac vice as counsel for defendants Acrisure, LLC, Acrisure of California, LLC, and Nickola Vucurevic in this matter is hereby GRANTED pursuant to California Rules of Court, rule 9.40.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| 2. | <b>HERNANDEZ VS.<br/>AMERICAN HONDA MOTOR<br/>CO. INC<br/>2025-01462311</b>                     | <p><b>MOTION TO COMPEL DEPOSITION (ORAL OR WRITTEN)</b></p> <p>The Motion to Compel Deposition of Defendant's Person Most Qualified and Custodian of Records by Plaintiffs Jose Garcia Hernandez and Laurie Espinoza is GRANTED.</p> <p>Plaintiffs seek to compel Defendant to produce a witness pursuant to their deposition notice served on 7/16/25. Plaintiffs' counsel declares they sent multiple emails but as of 2/2/26 Defendant's counsel had not provided a deposition date.</p> <p>Defendant is ordered to produce a witness within 30 days of this order. Any dispute regarding the specific production requests and categories of testimony may be resolved via a motion to compel further responses if necessary after diligent attempts to meet and confer.</p> <p>Plaintiffs' request for sanctions is granted in the amount of \$2,265.00.</p>                                                                                                                                                                                                                                    |
| 3. | <b>AMPCO CONTRACTING,<br/>INC. VS. MONZON &amp; SON<br/>ENTERPRISES, INC.<br/>2024-01381486</b> | <p><b>1. MOTION TO COMPEL RESPONSES TO FORM INTERROGATORIES</b></p> <p>Plaintiff Ampco Contracting, Inc.'s unopposed Motion to Compel Responses to Form Interrogatories (Set One) and Request for Sanctions is DENIED, in part, and GRANTED, in part.</p> <p>Plaintiff moves for an order compelling Defendant Rafael Solorio Jr. to serve responses to Plaintiff's Form Interrogatories – General (Set One); and for an award of monetary sanctions against Defendant and Defendant's counsel.</p> <p>After the motion was filed, Plaintiff's counsel filed a supplemental declaration on 7/7/26, indicating Defendant served verified responses on 6/2/26. Thus, the motion is moot as to the responses. Plaintiff's counsel contends the tardy responses are “non-complaint,” has attached the responses to the supplemental declaration and asks the Court to grant the motion and order Defendant to serve compliant responses. This request is improper. Plaintiff has not met and conferred with Defendant about the responses' purported deficiencies and has not served Defendant with</p> |

a motion to compel *further* responses accompanied by the required separate statement and meet and confer declaration.

Nevertheless, Plaintiff is entitled to sanctions concerning the instant motion. Plaintiff seeks an award of \$1,141, which represents 2.4 hours at a rate of \$450/hour, plus \$60 filing fee. The Court finds the time spent preparing the motion and the hourly rate are reasonable. Thus, the request for sanctions in the amount of \$1,141 is granted. Plaintiff's supplemental request for sanctions in the amount of \$450 for the hour counsel spent reviewing the tardy responses is denied. Those costs should be sought in connection with a motion to compel further responses.

Based on the foregoing, the motion is DENIED as moot, in part, regarding the responses and GRANTED, in part, regarding sanctions.

Defendant is ordered to pay Plaintiff sanctions in the amount of \$1,141 within 10 days.

Plaintiff to give notice.

## **2. MOTION TO COMPEL RESPONSES TO REQUESTS FOR PRODUCTION**

Plaintiff Ampco Contracting, Inc.'s unopposed Motion to Compel Responses to Request for Production of Documents (Set One) and Request for Sanctions is DENIED, in part, and GRANTED, in part.

Plaintiff moves for an order compelling Defendant Rafael Solorio Jr. to serve responses to Plaintiff's Request for Production of Documents (Set One); and for an award of monetary sanctions against Defendant and Defendant's counsel.

After the motion was filed, Plaintiff's counsel filed a supplemental declaration on 7/7/26, indicating Defendant served unverified responses on 6/2/26, and the verification on 7/6/26. Thus, the motion is moot as to the responses. Plaintiff's counsel contends the tardy responses are "non-complaint," has attached the responses to the supplemental declaration and asks the Court to grant the motion and order Defendant to serve compliant responses. This request is improper for the reasons mentioned in the Court's ruling concerning the interrogatory responses.

Nevertheless, Plaintiff is entitled to sanctions concerning the instant motion. Plaintiff seeks an award of \$330, which represents 0.6 hours at a rate of \$450/hour, plus \$60 filing fee. The Court finds the time spent preparing the motion and the hourly rate are reasonable.

Based on the foregoing, the motion is DENIED as moot, in part, regarding the responses and GRANTED, in part, regarding sanctions.

|    |                                                                                  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
|----|----------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|    |                                                                                  | <p>Defendant is ordered to pay Plaintiff sanctions in the amount of \$330 within 10 days.</p> <p>To the extent Defendant has not served responsive documents, Defendant is ordered to do so within 10 days.</p> <p>Plaintiff to give notice.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| 4. | <b>LAW OFFICES OF MARK B. PLUMMER, PC VS. NETWORKSOLUTIONS.COM 2020-01141868</b> | <ol style="list-style-type: none"> <li>1. <b>Motion to Compel Further Responses to Requests for Admissions, Set One (ROA 711)</b></li> <li>2. <b>Motion to Compel Further Responses to Special Interrogatories, Set One (ROA 727)</b></li> <li>3. <b>Motion to Compel Further Responses to Form Interrogatories, Set One (ROA 732)</b></li> <li>4. <b>Motion to Compel Further Responses to Requests for Production, Set One (ROA 752)</b></li> </ol> <p>The motions are CONTINUED to 9/1/26.</p> <p>These motions involve written discovery served to Plaintiffs on 2/15/21 by Defendant's former counsel, Ms. Juarez.</p> <p>On 11/12/25, the Court granted Defendant's motion to compel Plaintiffs to serve responses to the written discovery. The Court ordered Plaintiffs to serve verified responses within 30 days of the order. The order stated, "The Court declines to award sanctions to either side because both sides could have easily avoided this dispute by making a reasonable compromise rather than incurring attorney fees. The parties should engage in discovery cooperatively. The Court will not tolerate gamesmanship or delay tactics." The order further stated, "In future, if any party files or opposes discovery motions on grounds that could have been resolved by diligent efforts to meet and confer, that party and their counsel will be subject to sanctions."</p> <p>In these motions, Defendant contends Plaintiffs' Court-ordered responses were deficient.</p> <p>Code of Civil Procedure section 2016.040(a), amended effective 1/1/26, provides, "A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion."</p> <p>On 2/2/26, Defendant's counsel filed this motion after sending meet and confer emails on 1/27/26. Defendant's counsel also requested an extension to file the present motions in order to arrange a telephonic conference regarding the dispute. (Lopez Decl., ¶ 3.) Mr. Plummer told the legal assistant at defense counsel's office they had sent "50 pages of garbage" and declined to extend the motion deadline. (Lopez Decl., ¶ 4.)</p> |

In opposition to the motion, Plaintiffs assert the parties had an agreement that supplemental responses would be served by 3/2/26 and Defendant prematurely filed the motion which Plaintiff was engaged in a jury trial. Plaintiffs also assert the discovery is not reasonably calculated to lead to discovery of admissible evidence. Plaintiffs served supplemental responses on 6/29/26. (Exhibit C.)

Plaintiffs have not filed separate statements of discovery in dispute. (Rule 3.1345.)

Both sides have failed to make adequate efforts to meet and confer. The parties' counsel are required to engage in an in-person, telephonic, or videoconference discussion of the dispute under the recently-amended section 2016.040. Defendant's counsel should have diligently attempted to comply with their meet and confer obligations by scheduling a conference upon receiving Plaintiffs' responses. Plaintiffs should have promptly amended their responses, granted an extension if necessary, cooperated in attempts to schedule a conference, and should not have called Defendant's meet-and-confer correspondence "garbage."

Counsel shall comply with section 2016.040 with regard to any remaining dispute no later than 7/24/26.

No later than 7/31/26, Defendant's counsel shall file and serve a supplemental separate statement of discovery in dispute regarding any remaining disputed responses/supplemental responses. Defendant's counsel shall also file and serve a declaration describing their compliance with this order.

No later than 8/7/26, Plaintiffs' counsel shall also file a supplemental separate statement and declaration.

Neither party is invited to file additional points and authorities regarding the motion and any such filing will be disregarded by the Court.

Either side's counsel who fails to meet and confer in good faith will be subject to sanctions. Failure to exercise civility and professionalism in compliance with the State Bar and Orange County Bar Association Guidelines will also result in sanctions. Moreover, the Court may appoint a discovery referee, with costs borne by the parties, if the parties are unable to conduct discovery cooperatively. (Code Civ. Proc. § 639.)

The Court also expects the parties to engage in similar meet and confer efforts regarding the other pending discovery motions which have been continued to 9/1/26. (ROAs 717, 722, 737, and 742.)

|   |                                                                   |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
|---|-------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 5 | <b>HNHPC, INC. VS. THE<br/>DEPARTMENT OF<br/>CANNIBIS CONTROL</b> | <p><b>MOTION FOR RECONSIDERATION</b></p> <p>The Motion of Respondents Department of Cannabis Control and Clint Kellum in his Official Capacity as Director of the Department of Cannabis Control (“Respondents”) for Reconsideration of the Court’s prior ruling on the Petition for Writ of Mandate filed by Petitioner HNHPC, Inc. (“Petitioner”) is DENIED.</p> <p>Respondents’ Request for Judicial Notice is GRANTED as to Exhibits 20 through 22 and DENIED as to the remaining because they are not material to the disposition of the Motion.</p> <p>Petitioner’s Request for Judicial Notice of Exhibits 1 and G is GRANTED.</p> <p>Code of Civil Procedure section 1008, subdivision (c) provides, “If a court at any time determines that there has been a change of law that warrants it to reconsider a prior order it entered, it may do so on its own motion and enter a different order.” “A ‘change of law’ under section 1008, subdivision (c), ‘is always an appropriate basis, up until a final judgment is entered, for changing an interim order....’ [Citation.]” (<i>State of California v. Superior Ct. (Flynn)</i> (2016) 4 Cal.App.5th 94, 100.)</p> <p>As applicable here, Business &amp; Professions Code section 26067, subdivision (b)(2), was amended, effective January 1, 2026, by Senate Bill 861. The court issued its ruling on the Petition for Writ of Mandate under the prior version of section 26067, subdivision (b)(2), therefore, Respondents ask that the court reconsider its prior ruling.</p> <p>Prior to the amendment, section 26067, subdivision (b)(2) provided, “The <u>database</u> shall be designed to flag irregularities for the department to investigate.” (Emphasis added.)</p> <p>As amended, section 26067, subdivision (b)(2) provides, “The <u>electronic system</u> shall be designed to flag irregularities for the department to investigate.”</p> <p>The amendment simply replaced the term “database” with “electronic system” and was a terminology change for clarification and not a substantive change. This is reflected in the legislative history of Senate Bill 861.</p> <p>Specifically, the Legislative Counsel’s Digest of the amendment states: “Existing law requires the department to establish a track and trace program for reporting the movement of cannabis and cannabis products throughout the distribution chain, as specified. Existing law requires the department, in consultation with the California Department of Tax and Fee Administration, to create an electronic database containing the electronic shipping manifests to facilitate the administration of the track and trace program, as specified. [¶] <u>This bill would instead refer to the electronic database as an electronic</u></p> |
|---|-------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|

|    |                                                           |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
|----|-----------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|    |                                                           | <p><u>system.</u>” (Petitioner’s RJN Ex. 1; Legis. Counsel’s Digest., 2025-2026 Regular Session, S.B. 861 [emphasis added].)</p> <p>Similarly, the Senate Floor Analysis of Senate Bill 861 states that: “This bill <u>replaces</u> references to DCC’s <u>electronic database with electronic system</u> to more accurately reflect to the functionality of the system.” (Senate Rules Committee, Off. of Sen. Floor Analyses, 2025-2026 Regular Session, S.B. 861, 9/25/25 in Assembly [emphasis added].)</p> <p>The Senate Third Reading explained, “This bill contains several <u>technical and noncontroversial changes</u> to MAUCRSA and provisions relating to the DCC. Specifically, this bill would update cross-references in statutes providing for license application requirements, <u>clarify that track-and-trace is an electronic system rather than a database</u>, and make other minor changes. <u>None of the changes proposed by this bill are controversial or meaningfully substantive.</u>” (Respondent’s RJN Ex. 22; Senate Committee, 2025-2026 Regular Session, S.B. 861, Sen., 9/4/25 [emphasis added].)</p> <p>Thus, the legislative history of Senate Bill 861 shows the amendment is non-substantive and therefore does not impact the court’s prior analysis. Accordingly, the court finds the amendment does not warrant reconsideration of its prior ruling.</p> <p>Moving party to give notice.</p> |
| 6. | <b>DOAN VS. KIA AMERICA, INC.</b><br><b>2025-01513185</b> | <p><b>MOTION FOR SANCTIONS</b></p> <p>Plaintiffs Carla T. Doan and Jonathan I. Weaver’s Motion for Sanctions Under Code Civil Procedure, section 871.26 is GRANTED.</p> <p>Plaintiffs move for an order imposing a monetary sanction of \$2500.00 against the attorney of record for defendant Kia America, Inc. for the failure to comply with the provisions of Code Civ. Proc., section 871.26, subdivision (h)(6), (7), (8), (11) and (12).</p> <p>Code Civil Procedure, section 871.26, subdivision (b) provides:</p> <p style="padding-left: 40px;">(b) Within 60 days after the filing of the answer or other responsive pleading, all parties shall, without awaiting a discovery request, provide to all other parties an initial disclosure and documents pursuant to subdivisions (f), (g), and (h).</p> <p>Code Civil Procedure, 871.26, subdivision (h) provides, in relevant part:</p> <p style="padding-left: 40px;">The defendant or manufacturer shall provide the following documents to all other parties pursuant to</p>                                                                                                                                                                                                                                                                                                                                                                                            |

the timelines prescribed in subdivision (b): . . . [¶]  
(6) Motor vehicle information reports, including  
build documentation, component information, and  
delivery details. [¶] (7) Entire warranty transaction  
history for the motor vehicle. [¶] (8) Listing of  
required field actions applicable to the motor vehicle.  
. . [¶] (11) Records relating to communications  
between the manufacturer or dealership and the  
owner or lessee of the motor vehicle, including those  
related to repair orders or claims involving the motor  
vehicle. [¶] (12) Warranty policies and procedure  
manuals. . .

Code Civil Procedure, section 871.26, subdivision (j)(1) provides:

(j) Unless the party failing to comply with this  
section shows good cause, notwithstanding any other  
law and in addition to any other sanctions imposed  
pursuant to this chapter, a court shall impose  
sanctions as follows:

(1) A one-thousand-five-hundred-dollar (\$1,500)  
sanction against the plaintiff's attorney or two-  
thousand-five-hundred-dollar (\$2,500) sanction  
against the defense attorney respectively, paid within  
15 business days for failure to comply with the  
document production requirements as prescribed in  
subdivision (b).

Here, Plaintiffs have shown that Defendant failed to comply with  
subdivision (b) because Defendant failed to produce all the  
documents called for in subdivision (h). Rather, on the last day for  
Defendant to comply, Defendant provided a proposed stipulated  
protective order and asserted it was withholding a subset of  
documents it was required to produce as part of its initial disclosure  
pending the entry of the protective order. Even if Plaintiffs had  
immediately assented to the entry of the protective order, there was  
no possibility it could have been submitted to the Court and entered  
within the 60-day timeframe Defendant had to comply.

Defendant argues that sanctions are not warranted because it timely  
complied with its obligations under subdivision (h). Defendant  
reasons that the only documents not produced were subject to the  
qualified privilege protecting disclosure of trade secrets under  
Evidence Code, section 1060 and that Code of Civil Procedure,  
section 871.26 cannot require the waiver of this privilege.

Defendant's argument is unpersuasive. As an initial matter, statutes  
establishing an evidentiary privilege are narrowly construed, while  
discovery statutes are liberally construed. (*Sullivan v. Superior  
Court* (29 Cal.App.3d 64, 72 ["We have already referred to the  
requirement that privilege statutes must be narrowly construed,  
while discovery statutes must be liberally construed."].) Evidence



|    |                                                              |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |
|----|--------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|    |                                                              | <p>Code, section 1060 provides that “the owner of a trade secret has a privilege to refuse to disclose the secret ... if the allowance of the privilege will not tend to conceal fraud or otherwise work injustice.”</p> <p>Evidence Code, section 1060 cannot be used as a basis for outright refusal to produce the documents Defendant is required to produce pursuant to Code of Civil Procedure, section 871.26, subdivision (h)(6), (7), (8), (11) and (12). There is no genuine dispute that these categories of documents are directly relevant to one or more elements of Plaintiffs’ claims. Namely, Defendant agreed that the privilege is not absolute as to these categories by agreeing to produce the materials subject to a protective order.</p> <p>But the issue here is not whether Defendant’s invocation of trade secret privilege is legitimate. The issue is whether Defendant’s eleventh hour invocation of this privilege provides good cause to deny sanctions under Section 871.26, subdivision (j)(1). It does not. Nowhere in Section 871.26 does it provide that the 60-day deadline to comply can be satisfied by anything less than a complete response. Defendant has recognized that it cannot properly withhold these purported trade secret documents from production; this is shown by the offer to produce the documents subject to a protective order. Since Defendant failed to act diligently to obtain Plaintiffs’ assent to the stipulated protective order, or otherwise obtain a protective order, Defendant failed to provide all documents called for in Section 871.26, subdivision (h) within the 60 days required by subdivision (b). Had Defendant shown diligent efforts to obtain entry of the stipulated protective order within the 60 day time frame, the Court likely would have found good cause to excuse the sanctions award under Subdivision (j)(1). What is before the court, however, is a showing that Defendant failed to undertake appropriate efforts to timely comply with Section 871.26 with reasonable diligence. Defendant’s failure to promptly act does not warrant the conclusion that Section 871.26 operates to force Defendant to waive any privilege.</p> <p>The motion is granted.</p> <p>Counsel for Defendant Kia America, Inc. shall pay monetary sanctions in the amount of \$2,500 within fifteen business days of this ruling.</p> <p>Plaintiffs to give notice.</p> |
| 7. | <b>MAKA VS. AMERICAN HONDA MOTOR CO., INC. 2023-01325822</b> | <p><b>MOTION TO TAX COSTS</b></p> <p>Defendant American Honda Motor Co., Inc.’s Motion to Strike/Tax Plaintiffs’ Costs is GRANTED.</p> <p>Defendant moves to tax and/or strike Plaintiffs’ costs by \$387.95 as follows:</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |

|     |                                                                                                                |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
|-----|----------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|     |                                                                                                                | <ul style="list-style-type: none"> <li>• Item No. 1: Filing and Motion Fees – \$9.00;</li> <li>• Item No. 14: Fees for Electronic Filing or Service – \$40.25;</li> <li>• Item No. 15 – Other (Courtesy Copies) – \$273.70;</li> <li>• Item No. 15 – Other (Appearance Attorneys) – \$65.00.</li> </ul> <p>After fulling considering the motion, opposition, and reply, the Court grants Defendant’s motion for the reasons stated therein.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| 8.  | <b>ZIMMER VS. UNITED DOMINION REALTY TRUST, INC.</b><br><b>2025-01511185</b>                                   | <b>DEMURRER TO COMPLAINT</b> <p>Stephanie Catanach’s Demurrer is MOOT.</p> <p>Catanach was dismissed with prejudice on July 6, 2026 pursuant to a signed stipulation. Thus, she is no longer a defendant to this lawsuit and her demurrer is moot.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| 9.  | <b>CONSOLIDATED ELECTRICAL DISTRIBUTORS, INC. VS. SOLAR 360 BUILDING SERVICES, INC</b><br><b>2025-01451997</b> | <b>MOTION FOR AN ORDER TO SUBSTITUTE ATTORNEY</b> <p>Plaintiff Consolidated Electrical Distribution, Inc.’s Motion to Substitute Its Attorney of Record is GRANTED.</p> <p>Samantha R. Rikken, Esq. of Gibbs Giden Locher Turner Senet &amp; Wittbrodt LLP is ORDERED substituted in as counsel of record for Plaintiff.</p> <p>“The attorney in an action or special proceeding may be changed at any time before or after judgment or final determination, as follows: [¶] Upon the order of the court, upon the application of either client or attorney, after notice from one to the other.” (Code Civ. Proc., § 284.) “It has long been recognized in this state that the client’s power to discharge an attorney, with or without cause, is absolute.” (<i>Fracasse v. Brent</i> (1972) 6 Cal.3d 784, 790.)</p> <p>Plaintiff’s credit manager states in his declaration it is Plaintiff’s intention to substitute Rikken for prior counsel Michael I. Wayne, Esq. of Law Offices of Michael I. Wayne APC after losing contact with Wayne. (Johnson Decl., ¶¶ 5-8.)</p> |
| 10. | <b>HALBERDA VS. HIDDEN CANYON ESTATES HOMEOWNERS ASSOCIATION</b><br><b>2022-01299111</b>                       | <b>MOTION TO DISMISS</b> <p>Defendants John Alevizos and Georgia Alevizos’s (the Alevizoses) Motion to Dismiss and Enter Judgment is GRANTED.</p> <p>The Court exercises its discretion to dismiss the action as to the Alevizoses only after all issues as to the Alevizoses have been dismissed pursuant to this Court’s May 19, 2026, ruling on demurrer. (Code Civ. Proc., § 581(f)(1); <i>Cano v. Glover</i> (2006) 143 Cal.App.4th 326, 329.)</p> <p>Additionally, the Court finds it is in the interests of justice, judgment be entered as to the Alevizoses only. (Code Civ. Proc., § 578.) This order is appealable because it resolves all issues between the</p>                                                                                                                                                                                                                                                                                                                                                                                                  |

|     |                                                                               |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
|-----|-------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|     |                                                                               | Alevizoses and Plaintiffs. ( <i>Estate of Gonzalez</i> (1990) 219 Cal.App.3d 1598, 1601-1602.)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
| 11. | <b>GUNN VS. GREEN<br/>MEADOWS HOME HEALTH<br/>CARE, INC<br/>2023-01370855</b> | <p><b>1. MOTION FOR TERMINATING SANCTIONS</b></p> <p>Defendant’s Motion for Terminating Sanctions is CONTINUED to August 4, 2026, at 9:00 a.m.</p> <p>The Court has reviewed the in camera supplemental declarations of Dawn M. Smith and Daniel Lopez Revelez in response to the Court’s 6/23/26 order. The declarations demonstrate Plaintiff Lucia Gunn was, at an earlier stage of the litigation, able to communicate and participate in the litigation. The declarations also show that counsel engaged in reasonable efforts to present an accurate declaration from Ms. Gunn regarding her condition in advance of the mandatory settlement conference in June 2025.</p> <p>However, counsel should have maintained regular communication with Ms. Gunn and updated the Court and opposing counsel promptly when Ms. Gunn became unable to communicate or participate meaningfully in the action. The Court intends to issue a final ruling regarding sanctions at the continued hearing on 8/4/26.</p> <p>It appears Ms. Gunn now lacks capacity to participate in the litigation. (Code Civ. Proc. §§ 372, 373; see <i>In Re Sara D.</i> (2001) 87 Cal.App.4th 661, 665-666.)</p> <p>Ms. Smith’s declaration states that it is infeasible for a family member to be appointed as Plaintiff’s guardian ad litem in this case. However, the Code of Civil Procedure does not limit a guardian ad litem to a plaintiff’s family member.</p> <p>Plaintiff’s counsel shall appear in person at the hearing prepared to discuss why Plaintiff’s husband cannot serve as guardian ad litem and whether another third party, such as an attorney with another law firm, could be retained to serve as a guardian ad litem for the remainder of this litigation. The Court expects Ms. Smith to make all reasonable efforts to obtain a guardian ad litem and to file and serve a declaration detailing such efforts no later than five court days before the continued hearing date.</p> <p><b>2. MOTION TO BE RELIEVED AS COUNSEL OF RECORD</b></p> <p>Plaintiff’s Counsel’s Motion to be Relieved as Counsel is CONTINUED to August 4, 2026, at 9:00 a.m.</p> <p>On 6/23/25, the Court continued the hearing because moving counsel had not filed a proof of service of the motion, and the</p> |

|     |                                                       |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |
|-----|-------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|     |                                                       | <p>motion did not state whether personal service was effected on Plaintiff, who is apparently unable to communicate, or Plaintiff's husband, who was the main point of contact. Moreover, Defendant has opposed the motion on grounds including undue delay and prejudice to Defendant.</p> <p>On 6/29/26, Plaintiff's counsel filed a proof of service of the motion on Ms. Gunn via overnight delivery on 5/14/26, as well as proof of service of the notice of continuance.</p> <p>Plaintiff's counsel filed an untimely reply brief on 7/7/26, asserting that withdrawal is necessary because of their inability to communicate with the client or her husband.</p> <p>The motion is continued to allow Plaintiff's counsel to determine whether a third-party guardian ad litem can be retained for the remainder of the litigation which could avoid the necessity for withdrawal.</p> <p style="text-align: center;"><b>3. MOTION TO EXCLUDE EXPERTS</b></p> <p>Defendant's Motion to Exclude Expert Witnesses is DENIED as moot as to the exclusion of experts and GRANTED as to monetary sanctions.</p> <p>Defendant seeks to exclude Plaintiff's expert witnesses from testifying at trial because Plaintiff has failed to cooperate with the experts' depositions.</p> <p>As set out in the Court's 6/23/26 order and the declaration of Defendant's counsel, Plaintiff's counsel had repeatedly failed to cooperate in Defendant's request to depose her expert witnesses.</p> <p>However, based on Defendant's 7/1/26 supplemental declaration and Plaintiff's 7/7/26 supplemental brief, the parties have made arrangements to complete the expert witness depositions sufficiently in advance of trial – July 15 and 17. Therefore, the motion is moot as to exclusion of expert witnesses.</p> <p>Defendant's counsel declares they incurred \$3,200 in attorney fees plus \$60 in filing costs related to Plaintiff's counsel's failure to cooperate in expert discovery. (7/1/26 Jackson Decl., ¶ 6.) Plaintiff's counsel is hereby ordered to pay \$3,260 in monetary sanctions to Defendant no later than 7/31/26.</p> |
| 12. | <b>ECKHOFF VS. FAMILIES FORWARD<br/>2026-01574381</b> | <p><b>ORDER TO SHOW CAUSE RE: PRELIMINARY INJUNCTION</b></p> <p>Petitioner Stephanie Eckhoff's motion for a Preliminary Injunction restraining and enjoining Respondent Families Forward from taking any action to further terminate her program status or her continued</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |

|  |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
|--|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
|  | <p>possession of the premises located at 17 Cascade, Irvine, CA 92605 is CONTINUED 8/4/26 at 9:00 a.m. in Dept C32.</p> <p>On 6/2/26, Petitioner filed a verified Petition for Writ of Administrative Mandamus against Respondent Families Forward, challenging Families Forward’s termination of Petitioner’s enrollment in the Rapid Rehousing Plus Program. (Petition for Writ of Administrative Mandate (Petition), ¶ 12, 28.)</p> <p>On 6/16/26, the court granted Petitioner’s request for a Temporary Restraining Order and set an order to show cause re preliminary injunction for 6/30/26. (ROA 31.)</p> <p>On 6/30/26, the Court continued the hearing to 7/14/26 due to Petitioner’s failure to file the exhibits referenced in the Petition and Petitioner’s declaration. (ROA 1.)</p> <p>On 7/2/26, Petitioner filed a First Amended Petition for Writ of Administrative Mandate (Amended Petition) adding County of Orange as a Respondent and Woodbridge Meadows Apartments LLC as a Real Party In Interest as well as a supporting Memorandum of Points and Authorities. (ROA 60, 54.).</p> <p>On 7/2/26, Petitioner also filed an Exhibit List of exhibits in support of the Amended Petition (ROA 52) and the exhibits themselves. (ROA 56.) Petitioner filed another Exhibit List in Support of the Amended Petition on 7/6/26, which was similar to, but not identical, to the Exhibit List filed on 7/2/26. (ROA 64.)</p> <p>Petitioner has not filed a proof of service for the Amended Petition and supporting documents on Respondent or newly added parties County of Orange and Woodbridge Meadows Apartments LLC. The Court ORDERS Petitioner to file a proof of service of the Amended Petition and supporting documents as well as Petitioner’s request for a Temporary Restraining Order and the Court’s 6/16/26 Order granting the Temporary Restraining Order and order to show cause why a preliminary injunction should not issue on all parties.</p> <p>The Temporary Restraining Order issued on 6/16/26 to remain in effect until the continued hearing.</p> <p>Petitioner to give notice.</p> |
|--|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|